



Terms and Conditions

CHARTER SERVICES: All flights arranged by ValleyJet LLC are operated by a ValleyJet LLC vetted and approved FAA Part 135 Operator, with ValleyJet LLC acting as "Authorized Agent" for Client. Such aircraft are operated under their respective FAA Part 135 Air Carrier Certificates or their foreign Civil Aviation Authority (CAA) equivalents, and Client shall hold harmless ValleyJet LLC against any and all losses. All flights are subject to continued availability at the time of confirmation. Cancellation fees apply. All pricing is valid for 24 hours from receipt of the original quote and is subject to continued availability and applicable fuel surcharges. Departure times must be confirmed 72 hours prior to the date of the flight or the departure time will be scheduled around ValleyJet LLC's availability. Once scheduled, requested changes to the departure time are subject to availability. If ValleyJet LLC is unable to accommodate the requested change to the departure time, the flight will still be subject to the cancellation policy outlined below. All parties acknowledge that the Pilot-In-Command, in his or her sole discretion, shall be entitled to make all decisions regarding the boarding or refusal to board any passengers, the commencement of or refusal to commence any flight, the termination of or refusal to terminate any flight, or the acceptance or rejection of any item or baggage, all without liability for loss, injury or damage occasioned thereby.

OPERATIONS: ValleyJet LLC arranges flights on behalf of clients with FAR Part 135 direct air carriers that exercise full operational control of charter flights at all times and insures the provided aircraft. Flights will be operated by FAR Part 135 operators that have been certified to provide service for ValleyJet LLC. Booking agents or reserving passengers must be at least 18 years of age, provide a verifiable address, valid email address, and valid driver's license or passport. All bookings are subject to security screening and approval, and ValleyJet LLC reserves the right to approve or decline any reservation at its sole discretion. All bookings are subject to the approval of the aircraft owner or lessee where the operating carrier's management agreement requires it, and such approval may be withheld or withdrawn at any time before departure; a withholding or withdrawal of owner approval is not a breach by ValleyJet LLC. If owner approval is withheld or withdrawn, ValleyJet LLC will make every reasonable effort to source an equivalent aircraft at the contracted price, and if no equivalent aircraft is available and Client elects not to proceed, Client's sole remedy is a refund of amounts paid for the affected segments and no cancellation fee will be charged to Client. All bookings are subject to aircraft and crew availability and weight and balance considerations, and booking agents and passengers must adhere to the weight and balance specifications and limitations established for each flight.

FEDERAL EXCISE TAXES AND SEGMENT TAXES: Charter Broker / Client Agents are responsible for the payment of all Federal Excise Taxes (FET) and international/domestic segment taxes and agree to provide ValleyJet LLC with verification of FET payment for the flight upon request. If this Agreement is entered into by a person or entity other than the person utilizing the air transportation, then by doing so, said third party is representing that they are acting as the authorized agent for and on behalf of Customer and that Customer has received and has agreed to be bound by these terms and conditions; further, the third party or broker warrants that it is responsible for all amounts due under this Agreement as well as for the collection and remittance directly to the Internal Revenue Service (IRS) of all Federal Excise Taxes and Segment Fees. Federal Excise Tax is estimated based on the number of passengers provided at the time of booking; if additional passengers are added to any segment, the additional tax attributable to each added passenger will be invoiced to the Client following completion of the flight.

ADDITIONAL FEES AND EXPENSES: Quote reflects a 4% cash discount which is not applicable to accounts settled with credit cards. Quoted pricing is based on estimated flight times and, where the operating FAA Part 135 carrier applies one, a daily or per-trip minimum number of flight hours. Actual flight time may vary due to routing, air traffic control, weather, winds, or an additional or alternate approach, and any flight time charged by the operating carrier in excess of the estimate is billed to Client at that carrier's rate. Where a carrier's daily or per-trip

minimum exceeds the flight time actually flown, that minimum applies and is charged in full. Quoted pricing does not include catering beyond standard stock, ground transportation, flight phone charges, domestic wifi charges (unless otherwise noted), international wifi charges, hangar fees, fuel surcharges, deicing due to inclement weather (including hangar fees incurred to prevent deicing), special event fees, FBO fees, landing fees, parking fees, APU charges resulting from a Client-caused departure delay, aircraft cleaning or damage costs, interior pet cleaning, delays and/or reroutes caused by weather or air traffic (including enroute holding or diversions to alternate airports), added fuel stops, high density airport and FBO ramp fees, Client-selected FBO facilities fees, off-hour facility fees, or deviations to the itinerary, unless otherwise stated; any of which may result in additional charges. Any charge, fee, surcharge, penalty, or cost assessed by the operating FAA Part 135 carrier, or by any FBO, ground handler, fuel provider, or airport authority, that arises from the itinerary, from Client's requested changes, or from the conduct of Client or its passengers is passed through to Client at cost, whether or not that charge is enumerated above; the categories listed above are illustrative and not exhaustive.

International/Customs fees, handling, parking, and landing fees are estimated based on our preferred FBOs and to the best of their ability. Use of non-preferred FBOs may result in additional charges and/or fees. International fees are estimated and will be billed at actual cost. Additional fees and expenses (in addition to administration fees) will be invoiced to the Client following completion of the contracted flights with full payment due within 10 days. If payment for any outstanding balance is not received within 10 days, ValleyJet LLC shall process the securing credit card provided previously as payment, without further notice or request. If any alterations are requested for international trips within 36 hours of the scheduled departure, a \$350 fee will be added to the invoice for the additional handling. The additional \$350 fee will be applied each time a change in the trip is requested after the handling documents have been submitted. In the event that the account becomes delinquent, the authorized signer and the cardholder, in addition to the named entity, shall be jointly and individually responsible for the full amount including all costs and fees associated with the collection process, including reasonable attorneys' fees, travel expenses, and all associated court costs.

VALIDITY: This quote is valid for a period of 24 hours from the date the trip was quoted. In the event ValleyJet LLC determines that a price was quoted or transmitted in error, whether due to a system glitch, a transcription error, or an erroneous rate supplied by an operator, ValleyJet LLC may withdraw the quote without liability to the Client, provided that any amounts already paid by the Client in support of the erroneous quote are promptly refunded or credited toward a corrected quote.

CREDIT CARD HOLD: All flights require a credit card hold at the time of booking equal to the total trip price plus 4%.

PAYMENT: Client agrees that payment in full will be made by wire/ACH transfer or credit card prior to the commencement of the proposed flight. Specific requirements for payment may apply (i.e., 72 hours in advance of the proposed flight). Payment must be collected at least 24 hours prior to the scheduled departure time. Until payment in full is received and paperwork is signed and returned, the flight is not confirmed and the aircraft can be reassigned to another customer with no notice given. ValleyJet LLC will HOLD or AUTHORIZE credit/debit funds in lieu of a wire payment and/or collect a deposit. All flights that are in "Unpaid" status on the day of departure will be subject to payment by capturing the credit card hold. There is a 4% processing fee for all credit card payments. Checks may be used for payment with approval in advance from ValleyJet LLC. Credit card information is required for all payment methods. A copy of Client's credit card (front and back) and valid photo identification (i.e., driver's license) is required to complete booking. By signing this agreement, Client authorizes ValleyJet LLC to charge the credit card on file for any amount due under this agreement, including but not limited to: the contract balance; applicable federal, state, and local taxes; fuel surcharges; peak travel premiums; cancellation penalties; in-flight catering; ground transportation arranged through ValleyJet LLC; FBO and ramp fees; overnight or international handling fees; aircraft damage charges; cleaning fees; lavatory service charges; baggage and cargo overage fees; trip interruption and delay charges; rebooking or rerouting fees; and any other fees, expenses, or amounts properly chargeable to Client under this agreement, whether incurred before, during, or after the flight. Client agrees that this is a continuing authorization that remains in effect for twelve (12) months following the date of the last completed segment, and that ValleyJet LLC may charge the card on file in one or more separate transactions of varying amounts without obtaining additional signatures, separate written authorization, or advance notice for each individual charge. Client further authorizes ValleyJet LLC to charge a

replacement card on file if the original card is reissued, expires, or is updated through the card network's automatic-updater service. Should the credit card on file be declined at any time, payment must be wired to ValleyJet LLC within three (3) business days, together with a \$500 late fee and any applicable card processing fee, after which interest shall accrue on the unpaid balance at the maximum daily rate allowed by applicable law until the total charges are paid in full. Customer must indemnify, hold harmless, and defend ValleyJet LLC against airline debit memos for credit card chargebacks arising out of: (a) Client employees' problems with airline service or (b) unauthorized charges by former employees of Client. Customer shall attempt to resolve directly with ValleyJet LLC any disputed transaction fees before initiating a chargeback of such fees.

CREDIT CARD PROCESSING FEES: If a Client elects to pay by credit card and subsequently cancels the trip after payment has been processed, the Client acknowledges that all credit card processing fees are non-refundable. In the event of a cancellation requiring a refund, the refunded amount will be less the credit card processing fees charged to ValleyJet LLC by its merchant processor. A 4% payment processing fee will be added to credit card transactions processed against the securing card for cancellation fees or unpaid balances.

SMOKING, PETS, AND DAMAGE TO AIRCRAFT: Smoking is PROHIBITED on all ValleyJet LLC aircraft, including the use of electronic cigarettes or vaping devices, and is also prohibited around the FBO facilities including any customer lobby, hangar, or tarmac. Any passenger who smokes on an aircraft agrees to pay a \$10,000.00 refurbishment fee. Pets are permitted only with prior approval from ValleyJet LLC and must be announced at the time of booking. Pet carriage is subject to the operating carrier's written approval, which must be obtained no later than seventy-two (72) hours before the scheduled departure time; pets are not permitted in the cargo hold; and the operating carrier may require a refundable incidental hold of up to \$500 on the card on file for pet carriage, which is separate from and not included in the quoted trip price. If Client arrives with an undisclosed pet, the operating carrier may refuse carriage and Client remains responsible for the full charter amount. A pet fee covers regular post-flight cleaning, including hair and dander removal and light soiling removal due to pet paws, food, and water. Any pet damage due to urine or feces will require additional cleaning or refurbishment billed at cost. If the aircraft must be removed from service for such refurbishment, an additional daily refurbishment cost applies. Pet fees are NON-REFUNDABLE and are as follows for all pets disclosed at the time of booking: 1 pet - \$500; 2 or more pets - \$750; undisclosed pets upon passenger arrival - \$1,000; pet damage to aircraft - actual refurbishment costs plus \$5,000 per day of aircraft downtime. Passengers are responsible for the behavior and comfort of their pets during the flight.

DAMAGE DOCUMENTATION: Customer is liable for any damage caused by passengers to the aircraft beyond normal wear and tear. Customer agrees to notify ValleyJet LLC of any damage or incident occurring on or around the aircraft during the charter period prior to or upon deplaning. Customer acknowledges that failure to report known damage does not limit Customer's liability for such damage. A pre-flight and post-flight inspection may be conducted by the operator, and Customer agrees to cooperate fully with any such inspection or damage assessment.

TEMPORARY FLIGHT RESTRICTION (TFR): Additional flight time charges may apply during an active TFR. Additional flight time charges and landing fees will be assessed and passed on to the Client if a reroute or stop at a gateway location is needed.

SCHEDULE CHANGES AND ITINERARY CHANGES: ValleyJet LLC will make every effort to accommodate a Client's requested itinerary changes; however, ValleyJet LLC may not be able to accommodate all such requests, and additional fees may be incurred depending on the extent of those changes. Itinerary changes are subject to aircraft and crew availability and may result in a price adjustment. Aircraft are not guaranteed to remain continuously available for Client use or access while at the destination airport or during layover periods. Only requested occupied flight legs are available to the Client. Reposition flights and empty legs shall not be resold without express written permission from ValleyJet LLC. All notifications of changes and/or cancellations must be submitted in writing via email to charter@valleyjet.com with sufficient notice to facilitate change requirements. Where a requested change cannot be accommodated by the operating FAA Part 135 carrier and Client elects not to proceed with the itinerary as contracted, the request is treated as a cancellation effective as of the date and time the change was requested, and the cancellation tiers set forth below apply. Where a change is accommodated at an increased cost, Client is responsible for the full difference between the original contract

amount and the revised amount, which becomes due upon Client's written acceptance of the revised itinerary.

PEAK TRAVEL DATES AND TERMS: All flights scheduled during peak travel periods are subject to the cancellation policy outlined below. Departure times must be provided at the time of booking for all flights booked on peak travel dates. Once scheduled, requested changes to the departure time are subject to availability. If ValleyJet LLC is unable to accommodate the requested change to the departure time, the flight will still be subject to the cancellation policy outlined below. In addition to dates that fall within 3 days of a federal holiday, the following holiday periods are subject to peak travel terms in every year: Martin Luther King, Jr. Day, extending from the Thursday preceding the holiday through the following Tuesday; Presidents Day, extending from the Thursday preceding the holiday through the following Tuesday; Good Friday and Easter, extending from the Thursday preceding Good Friday through the following Tuesday; Memorial Day, extending from the Thursday preceding the holiday through the following Tuesday; Independence Day, extending from three days before the holiday through three days after the holiday; Labor Day, extending from the Thursday preceding the holiday through the following Tuesday; Columbus Day, extending from the Thursday preceding the holiday through the following Tuesday; Thanksgiving, extending from the Saturday preceding Thanksgiving Day through the following Tuesday; Christmas, extending from December 20 through and including December 31; and New Year, extending from January 1 through and including January 7. For the 2026-2027 season these periods include, without limitation, November 20 - December 1, 2026, December 19 - 31, 2026, and January 1 - January 7, 2027. Major sporting events include, but are not limited to: Super Bowl, Masters Golf Tournament, Kentucky Derby, World Series, NCAA Final Four, and NCAA Football Championship. Peak Travel Terms apply if traveling to any airport surrounding the event. Trips scheduled during peak travel periods are subject to the peak/holiday cancellation tiers outlined below. On peak travel dates, the operating carrier may accelerate or delay a departure by up to six (6) hours from the requested departure time to accommodate airport, slot, and crew constraints, and such an adjustment does not constitute a cancellation or entitle the Client to a refund.

CANCELLATION POLICY: ValleyJet LLC will work in good faith with the Client to reschedule or restructure trips when operationally feasible and when the operating Part 135 certificate holder permits; however, the following cancellation tiers apply when changes cannot be accommodated. For domestic flights that are priced as round-trip or multi-city itineraries and that do not occur during peak/holiday travel periods, cancellations made more than seventy-two (72) hours before the scheduled departure time will incur a 10% cancellation fee; cancellations made between forty-eight (48) and seventy-two (72) hours before the scheduled departure time will incur a 60% cancellation fee; cancellations made between twenty-four (24) and forty-eight (48) hours before the scheduled departure time will incur an 85% cancellation fee; and cancellations made less than twenty-four (24) hours before the scheduled departure time are 100% non-refundable. Itineraries priced as one-way or point-to-point (that is, priced at less than round-trip pricing), and empty-leg itineraries, are 100% non-refundable from the time this Agreement is signed, and Client acknowledges that this applies whether or not the scheduled departure date is months in the future. For international flights (any itinerary that includes at least one airport outside of the contiguous United States, including itineraries serving Alaska and Hawaii), a 20% cancellation fee applies from the time this Agreement is signed; cancellations made within seven (7) days of the scheduled departure date will incur a 35% cancellation fee; cancellations made within ninety-six (96) hours of the scheduled departure date will incur a 60% cancellation fee; and cancellations made within forty-eight (48) hours of the scheduled departure date are 100% non-refundable; in each case together with all costs and fees related to international flight planning, permits, and handling, which are non-refundable in full. For any itinerary that encompasses peak/holiday travel dates, a 20% cancellation fee applies from the time this Agreement is signed; cancellations made within fourteen (14) days of the scheduled departure date will incur a 35% cancellation fee; cancellations made within seven (7) days of the scheduled departure date will incur a 60% cancellation fee; and cancellations made within one hundred twenty (120) hours of the scheduled departure date are 100% non-refundable. In cases of no-shows, a cancellation fee equal to 100% of the full contract amount, along with any related expenses incurred, will be applied. Any fees incurred by ValleyJet LLC to reserve the execution of the trip, such as PPRs, Special Event fees, etc., will not be refunded. All trip dates are based off the signed contract's original date and time. Should a flight be canceled before cash funds are received, ValleyJet LLC will utilize the credit card hold as payment for the cancellation fee. A 4% payment processing fee will be added to such transactions. No refunds will be given on credit card processing fees. ValleyJet LLC reserves the right to adjust

arrival and departure times and locations when necessary to ensure the safety of passengers and crew. Alterations to the trip may occur due to factors such as weather conditions, crew rest requirements, NOTAMs, TFRs, Ground Stops, ATC delays, etc. These changes do not permit cancellations with a refund. Where the operating FAA Part 135 carrier imposes a cancellation policy more restrictive than the tiers stated above, that carrier's policy governs and is passed through to Client in full; this includes, without limitation, one-way, point-to-point, and empty-leg itineraries, which certain carriers treat as 100% non-refundable from the time of booking. ValleyJet LLC will disclose any such carrier-imposed policy to Client in writing at the time of booking. Cancellation fees may be applied as credit toward a future trip booked within twelve (12) months of the original departure date, at ValleyJet LLC's sole discretion and subject to operator approval.

SLIDING DEPARTURE FEES: A 30-minute grace period is provided after the scheduled departure time. After 30 minutes, a \$500 sliding departure fee will be added every 30 minutes until the passengers arrive. 30+ minutes past scheduled takeoff: \$500 charge. 60+ minutes past scheduled departure: \$1,000 fee. 90+ minutes past scheduled departure: \$1,500 fee. 120+ minutes past scheduled departure: \$2,000 fee. If passengers are not in place for departure within 45 minutes of itinerary departure time, the flight may be considered missed and the operator reserves the right to reposition the aircraft for subsequent itineraries; no refund or credit for any portion of the itinerary is due to the broker or passenger for a missed flight. ValleyJet LLC reserves the right to depart without passengers if they do not board the aircraft within 1 hour of the scheduled departure time, to maintain flight punctuality for future flights. Any additional costs associated with a sliding departure will be charged on the final invoice. No refund will be issued. This can include, but is not limited to, additional parking fees from the FBO and APU charges resulting from the delay.

TRIP INTERRUPTION AND DELAYED TRIPS: ValleyJet LLC reserves the right to adjust arrival and departure times and locations when necessary to ensure the safety of passengers and crew. Alterations to the trip may occur due to factors such as weather conditions, crew rest requirements, NOTAMs, TFRs, Ground Stops, ATC delays, etc. These changes do not permit cancellations with a refund. In the event that this trip is not able to be completed because of mechanical issues, weather, a safety of flight determination (including delays which extend crew duty day to a point in which it is illegal to continue the trip), or other circumstances beyond our control, the customer will only be responsible for payment for all costs incurred for the completed portion(s) of the trip including but not limited to aircraft positioning, crew expenses, travel fees, and ramp fees. ValleyJet LLC does not guarantee that an alternate aircraft will be available, but will make every reasonable effort to locate alternative transportation. ValleyJet LLC does not guarantee the price of the alternative transportation. Under no circumstances will ValleyJet LLC be responsible for the payment of additional charges incurred as a result of the interrupted flight. In the case that an aircraft is AOG (Aircraft on Ground) due to a mechanical issue, ValleyJet LLC reserves the right to find a recovery aircraft in-fleet. If a recovery is available within 4 hours of the originally scheduled departure time, no refund will be issued if the Client chooses to cancel. If no recovery is available within 4 hours of the originally scheduled departure time, a full refund will be available if the Client chooses to cancel the trip. If a flight is diverted mid-route due to a maintenance issue, the booking customer may receive a \$300.00 credit for future travel with ValleyJet LLC, and our charges will apply only to portions of the flight completed.

WINTER OPERATIONS: If deicing or a hangar is required for any repositioning or live legs to complete the trip, an additional charge will be included in the final invoice. In cases where the aircraft cannot land at the originally planned departure or arrival airport due to weather, the aircraft will divert to the nearest available airport. No compensation will be provided for such diversions.

AIRPORT CONGESTION: Refunds are not available for trip cancellations due to airport congestion resulting in crew duty expiration. This includes, but is not limited to, special events, holiday travel, TFRs, etc. Additional fees may apply for extended taxi times or if a diversion is required.

BAGGAGE: The weight and size of baggage may be limited due to space, weight, and/or other factors. Approximate baggage and passenger weights must be provided 48 hours prior to takeoff. ValleyJet LLC relies on brokers' information for baggage weights. If, based on aircraft weight and balance considerations, the crew suspects an excess of baggage beyond the allowable limit (factoring in passenger weights), they reserve the right to weigh passenger baggage. If the total weight surpasses the permissible limit, the flight crew will instruct

passengers on the necessary removal of baggage. Any removed/rejected baggage remains the sole responsibility of passengers and the broker. ValleyJet LLC will not transport bags causing the plane to exceed weight limits, nor will it facilitate the shipment of excess baggage. If any baggage is not able to be loaded on the aircraft, the Customer may elect to have ValleyJet LLC ship those belongings at the customer's expense. ValleyJet LLC shall not be held responsible for losses on shipped baggage. Firearms and ammunition must be declared and approved by ValleyJet LLC at least 24 hours prior to departure. Per 49 CFR Part 175 (Carriage of Hazardous Material by Aircraft), ValleyJet LLC does not operate with any hazardous material on board, including but not limited to explosives, compressed gases, or any flammable substances.

REGULATORY, TSA, AND PASSENGER SECURITY Federal regulations require that all passengers over 18 years of age must present a valid government-issued photo ID to the flight crew prior to boarding the aircraft. International flights require a current passport. ValleyJet LLC is not responsible for the procurement of visas nor will be held responsible if the customer is refused entry to an international destination. Please visit www.TSA.gov for prohibited items that may not be carried on board. Federal regulations require the positive identification of each passenger and a security check with the Transportation Security Administration (TSA). For each passenger, ValleyJet LLC requests the name and identification type (e.g., driver's license number and state of issuance) be provided at least 48 hours prior to departure. Any changes to the passenger list should be provided as soon as possible. Indicate the leg that each passenger will fly. At the time of boarding, each passenger will be required to present a photo ID for positive identification. Providing passenger information late may result in delays, which will be charged to Customer. Passengers and agents authorize ValleyJet LLC and the operating carrier to conduct background checks as needed to ensure the safety of all passengers and crew. Agents, passengers, and guests are required to comply with and be responsible for all security protocols, including security screenings and identity verification. Failure to comply with security regulations may result in the cancellation of the booking without a refund. Engaging in any illegal activity during the use of services, including but not limited to smuggling, drug trafficking, or any criminal activity, is strictly prohibited. Passengers and their guests must not engage in disruptive behavior that interferes with the safety, comfort, or enjoyment of other passengers or crew members, and excessive intoxication or substance abuse that compromises the safety of the flight is prohibited.

PASSENGER AND CARGO DOCUMENTATION: All adult passengers must present valid photo identification issued by a state or federal agency on the date of travel. Passengers are required to present all required identification and documentation for international travel at least 72 hours prior to the scheduled departure time, including legal names, passport (with issuance information), visas, medical verifications, and other related or required documents for all passengers. For international travel, passengers must also present all required documentation and identification on the date of travel. Crew reserves the right to refuse boarding of any passenger without required documentation and a valid form of identification. All information must be presented in a complete, legible, and accurate format. Cancellations, fines, penalties, or related expenses associated with any incomplete, improper, or inaccurate information, or delay, denial of travel, or entry by a governmental authority will be the responsibility of the Client. Passengers are responsible for obtaining all information regarding the requirements for entry into and exit from the respective origination and destination states and countries, and any requirements for transportation of minors. Children under the age of two may travel on the lap of an adult; however, the use of an appropriate child safety seat is recommended. Passengers are responsible for knowing the restrictions for carrying dangerous or prohibited goods by air, which can be found at www.TSA.gov. All possessions, baggage, and cargo presented for carriage aboard the aircraft are subject to search by the air carrier and applicable authorities. Clients are responsible for any delays, fines, penalties, confiscations, or impoundment, including aircraft downtime, which is caused directly or indirectly by the Client or their guests, and for any documented or undocumented contents, cargo, or possessions carried by the Client or their guests. Passenger-supplied therapeutic or medical oxygen is not allowed, and any passenger handling or assistance requests or needs must be provided prior to signing this agreement.

FORCE MAJEURE: Any condition beyond ValleyJet LLC's control and any other fact not reasonably foreseen, anticipated, or predicted by ValleyJet LLC, including but not limited to meteorological conditions, acts of God, airport traffic congestion, FAA or air traffic control flight restrictions, delays, riots, embargoes, labor disputes, government regulation, demand or requirement, shortage of labor, shortage of fuel or facilities, hostilities or unsettled international conditions whether actual, threatened, or reported, delay, demand, and circumstances or

requirements due, directly or indirectly, to such condition shall be considered Force Majeure. ValleyJet LLC may, in the case of a force majeure event, without notice, cancel, terminate, divert, postpone, or delay any flight or reservation and determine if any departure or landing should be made, without liability except to refund for any unused portion of the reservation.

LIABILITY: ValleyJet LLC is not liable for any damage or loss unless it is the direct result of negligence or intentional misconduct of ValleyJet LLC or its employees. Each operating FAA Part 135 carrier maintains the aircraft liability insurance for the aircraft it operates, and Client's recourse for any aircraft-related loss is to that carrier and its insurer; ValleyJet LLC, acting as Authorized Agent and broker, does not own, operate, or insure any aircraft. Except to the extent covered by any applicable insurance actually maintained by ValleyJet LLC, ValleyJet LLC shall not have, nor assume, any responsibility or liability to Client for activities performed by another company or person engaged in the conveyance or handling of the Client or their guests. ValleyJet LLC's liability shall be limited to the insured amount, if any, and under no circumstances will ValleyJet LLC's liability exceed any amount actually paid by ValleyJet LLC's insurer, if any, or extend to lost profits, special, or consequential damages. Customer is liable for any damage caused by passengers to the aircraft. ValleyJet LLC shall not be liable, whether under contract, negligence, strict liability, or other legal or equitable theory, for any consequential, indirect, incidental, special, punitive, exemplary, or reliance damages, under any circumstances for the services rendered or delivered hereunder.

INDEMNIFICATION: Customer shall indemnify, defend, and hold harmless ValleyJet LLC, its officers, directors, employees, agents, affiliates, and legal representatives from and against any and all claims, damages, losses, costs, penalties, demands, obligations, liabilities, and expenses (including reasonable attorneys' fees and disbursements) arising out of or related to: (a) any act or omission of Customer or its passengers; (b) any damage caused to the aircraft or third parties by Customer or its passengers; (c) any breach of this Agreement by Customer; or (d) any matter arising out of or related to this Agreement. This indemnification shall survive termination of this Agreement.

NON-CIRCUMVENTION: For a period of twenty-four (24) months following the date of this Agreement or the most recent charter arranged through ValleyJet LLC, whichever is later, the Client and the Client's affiliates, employees, agents, family members, and travel companions agree not to, directly or indirectly, solicit, contact, charter from, lease aircraft from, or enter into any commercial arrangement with any FAA Part 135 air carrier, aircraft owner, operator, fixed-base operator, ground handler, catering provider, or service vendor introduced to or arranged for the Client by ValleyJet LLC, without ValleyJet LLC's prior written consent. The Client acknowledges that ValleyJet LLC has invested substantial time, capital, and proprietary effort in identifying, vetting, contracting with, and maintaining its network of FAA Part 135 operators and service vendors; that the identity of those operators and vendors constitutes confidential and proprietary business information of ValleyJet LLC; and that any direct dealing by the Client with such parties would cause ValleyJet LLC material and ascertainable economic harm. In the event of a breach, the Client agrees to pay ValleyJet LLC liquidated damages equal to fifteen percent (15%) of the gross value of any charter, flight, lease, or related service obtained by the Client through the bypassed introduction, in addition to all other remedies available at law or in equity, including injunctive relief, recovery of reasonable attorneys' fees and costs, and disgorgement of any savings or profit derived from the circumvention. The Client further agrees that this provision is reasonable in scope and duration given ValleyJet LLC's legitimate business interests, and that any required carrier-identification disclosure made by ValleyJet LLC under 14 CFR 295.24 does not waive, diminish, or limit the Client's obligations under this Section. This obligation survives the termination, expiration, or cancellation of this Agreement.

AGREEMENT APPLICABILITY AND VENUE: This agreement shall be binding upon and inure to the benefit of the parties, their successors, and permitted assigns. ValleyJet LLC reserves the right to determine the sole and exclusive venue for any and all claims arising from this agreement. ValleyJet LLC may modify these Terms at any time; any updates or changes will be communicated via email or through the ValleyJet LLC website, and continued use of services after such modifications constitutes acceptance of the revised Terms. This agreement constitutes the entire agreement between the parties and supersedes all other oral or written understandings between the parties as relates to this matter.